

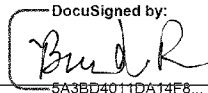
**IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION**

SWEET LIVING, INC.,
Plaintiff,

Case No.: 26-CC-001256

v.

BRANDI RODGERS,
Defendant.

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**DEFENDANT'S RESPONSE IN OPPOSITION TO PLAINTIFF'S RENEWED MOTION
FOR JUDICIAL DEFAULT AND FINAL JUDGMENT OF POSSESSION**

Defendant, BRANDI RODGERS, pro se, responds in opposition to Plaintiff Sweet Living, Inc.'s Renewed Motion for Judicial Default and Final Judgment of Possession and states:

I. Summary

Plaintiff asks for an immediate default based on a court-registry theory. That request should be denied because the central facts needed to apply the registry statute are disputed. Defendant denies that she was ever approved as a tenant, denies that she entered a rental agreement with Plaintiff, denies that she acquired marketable title, denies that valid notice was served at her last known address, and denies that the alleged rent was capable of being paid through any account Plaintiff provided. The Court should not enter a default or final judgment of possession without first holding an evidentiary hearing and determining whether any rent is owed and by whom.

II. Disputed Facts

1. Defendant did not sign a written lease, lot rental agreement, or prospectus with Plaintiff.
2. Defendant did not orally agree with Sweet Living, Inc. or Desmond Surujbali to pay monthly lot rent.
3. Defendant's communications about purchasing the mobile home were with Sally Potes, the private seller, not with an authorized representative of Plaintiff.
4. Defendant was told by park manager Jack Bergert on or about December 17, 2025, that she was NOT APPROVED for residency.
5. Defendant never lived at the subject property, never received mail there, and never used it as her address. Defendant's actual address was 13721 94th Ave, Seminole, Florida 33776.
6. Defendant was not given access to an active payment portal account, user ID, password, mailbox key, or possession/control of the lot.
7. Defendant alleges that a lock blocker was placed on the front door on or about January 13, 2026, preventing access before any court order granting possession to Plaintiff.

8. Defendant disputes the validity of the title transfer. Defendant alleges that official DMV/tax collector records continued to identify Sally Potes as the owner, not Defendant.
9. Defendant disputes Plaintiff's service and notice allegations and asserts that notices and court papers were not properly served at her last known address.

III. Argument

A. Plaintiff Has Not Established a Valid Tenancy or Lot-Rent Obligation

Section 723.059(1), Florida Statutes, provides that a purchaser of a mobile home within a park may become a tenant of the park subject to approval of the park owner. Defendant alleges the park manager expressly denied approval before any tenancy began. If Plaintiff denied approval, Plaintiff cannot also obtain a nonpayment default as though an approved tenancy existed. At minimum, the approval issue requires an evidentiary hearing.

B. Plaintiff's Court-Registry Argument Cannot Be Applied Before the Court Determines Status and Amount

Section 723.063(2), Florida Statutes, applies to the mobile home owner's obligation to deposit accrued rent, if any, as alleged or as determined by the Court, and states that the Court shall notify the mobile home owner of the requirement. Here, Defendant disputes the threshold status that triggers the registry statute and disputes that any rent accrued against her. The phrase 'if any' matters: the Court must decide whether there is any rent owed by Defendant before default is entered on that basis.

Defendant asks the Court to determine rent and permit deposit of any court-determined amount within a reasonable time after written order, without treating the request as an admission of tenancy, ownership, possession, or liability.

C. Section 319.22 Does Not Establish Defendant's Marketable Title on These Facts

Plaintiff relies on title law to call Defendant the owner. But section 319.22(1), Florida Statutes, states that a person acquiring a mobile home does not acquire marketable title until a certificate of title has been issued to that person, and courts generally do not recognize title interests unless evidenced by a duly issued certificate. Defendant disputes that this happened. Defendant alleges DMV/tax collector records continued to show Sally Potes as owner. Plaintiff's title/ownership theory therefore requires evidence and cannot support an automatic default on the present record.

D. Notice Is Disputed Under Section 723.061

Section 723.061(1)(a), Florida Statutes, requires a written demand for payment and a continued default for 5 days after delivery before termination for nonpayment. Section 723.061(4) requires notice to be posted and sent by certified or registered mail, return receipt requested, to the mobile home owner and tenant or occupant at the last known address. Defendant did not live at the property and alleges Plaintiff knew or should have known her Seminole address. If notice was served only at the Zephyrhills lot, notice is disputed and must be tested at hearing.

E. Material Noncompliance and Equitable Defenses Require a Merits Hearing

Defendant alleges that Plaintiff or its agents refused or failed to provide payment-portal access, failed to provide keys or meaningful access, denied residency approval, and installed a

lock blocker before final judgment. These facts are directly relevant to possession, rent, notice, material noncompliance, and equitable defenses under section 723.063(1), Florida Statutes.

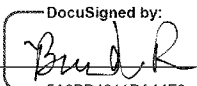
F. Defendant Preserves Her Prior Jury Trial Demand

Defendant has demanded jury trial in this case and again preserves that demand for disputed issues of fact, including but not limited to whether a tenancy existed, whether Defendant was approved, whether rent was agreed to or owed, whether notice was properly served, and whether Plaintiff materially failed to comply with Chapter 723.

IV. Requested Relief

WHEREFORE, Defendant respectfully requests that the Court deny Plaintiff's Renewed Motion for Judicial Default and Final Judgment of Possession, deny entry of default, deny final judgment of possession, set an evidentiary hearing, determine the rent amount if any, preserve Defendant's defenses and jury demand, require Plaintiff to produce the records described above, and grant any other relief the Court deems just and proper.

Respectfully submitted,

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BRANDI RODGERS, Defendant, pro se

Mailing Address: 13721 94th Ave

Seminole, Florida 33776

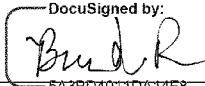
Telephone: 7276216090

Email: brandisreallife@gmail.com

CERTIFICATE OF SERVICE

6/1/2026

I CERTIFY that a true and correct copy of the foregoing was furnished on this ____ day of
6/1/2026, 2026, to Keith Wynne, Esq., attorney for Plaintiff Sweet Living, Inc.,
through the Florida Courts E-Filing Portal and/or at the email address(es) and mailing
address(es) listed for Plaintiff's counsel in the court record.

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BRANDI RODGERS